

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Will Jacobson	Team: Squad #07	CCRB Case #: 202401639	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 02/16/2024 1:40 AM	Location of Incident: LIRR Jamaica station (located at 93-02 Sutphin Boulevard)	18 Mo. SOL 8/16/2025	Precinct: 103
Date/Time CV Reported Fri, 02/16/2024 3:26 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/16/2024 3:26 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Brian Estevez	26725	965072	PSB CRT
2. SGT SA James Seder	03111	947479	PSB CRT
3. DT3 Damir Vukosa	14943	971511	PSB CRT
4. PO Evangellos Georgakis	23632	969091	PSB CRT
5. LT Michael Boyle	00000	946802	017 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Nicholas Gluth	07905	966079	PSB CRT
2. PO Liosmely Holguin	13031	966628	PSB CRT
3. CPT Thomas Kaminski	00000	945867	PSB CRT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Brian Estevez	Abuse: Police Officer Brian Estevez stopped the vehicle in which § 87(2)(b) was an occupant.	A . Substantiated
B . PO Brian Estevez	Abuse: Police Officer Brian Estevez questioned § 87(2)(b)	B . Substantiated
C . PO Brian Estevez	Abuse: Police Officer Brian Estevez searched § 87(2)(b)	C . Substantiated
D . PO Brian Estevez	Force: Police Officer Brian Estevez used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . DT3 Damir Vukosa	Force: Detective Damir Vukosa used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Evangellos Georgakis	Force: Police Officer Evangellos Georgakis used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . DT3 Damir Vukosa	Abuse: Detective Damir Vukosa searched the vehicle in which § 87(2)(b) was an occupant.	G . Substantiated
H . SGT SA James Seder	Abuse: Sergeant James Seder searched the vehicle in which § 87(2)(b) was an occupant.	H . Substantiated
I . LT Michael Boyle	Abuse: Lieutenant Michael Boyle searched the vehicle in which § 87(2)(b) was an occupant.	I . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
J . PO Evangellos Georgakis	Abuse: Police Officer Evangellos Georgakis frisked § 87(2)(b)	J . Substantiated
K . PO Evangellos Georgakis	Abuse: Police Officer Evangellos Georgakis searched § 87(2)(b)	K . Substantiated
L . PO Brian Estevez	Abuse: Police Officer Brian Estevez issued an unlawful summons to § 87(2)(b)	L . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On February 16, 2024, § 87(2)(b) filed this complaint with the CCRB call-processing system, on behalf of her son, § 87(2)(b).

On February 16, 2024, at approximately 1:40 am, § 87(2)(b) was parked outside of the Long Island Rail Road Jamaica train station in Queens when his vehicle was stopped by a group of officers of the BTK Patrol Service Bureau Community Response Team, led by Police Officer Brian Estevez (**Allegation A: Abuse of authority- Vehicle stop, substantiated**). PO Estevez ordered § 87(2)(b) out of the vehicle and asked him if he had anything on him that he was not supposed to have (**Allegation B: Abuse of Authority- Question, substantiated**). PO Estevez then searched § 87(2)(b) as he, Police Officer Evangellos Georgakis and Detective Damir Vukosa (who was Police Officer Kozarac at the time of this incident, but will be herein referred to as his current name and rank) grabbed each of § 87(2)(b) arms (**Allegation C: Abuse of Authority- Search of person, substantiated**) (**Allegations D-F: Force-physical force, within NYPD guidelines**). Det. Vukosa, Sergeant James Seder and Lieutenant Michael Boyle (who was Sgt. Boyle at the time of this incident but will be herein referred to as his current rank, now of the 17th Precinct) all searched § 87(2)(b) vehicle (**Allegations G-I: Abuse of Authority- Vehicle search, substantiated**). PO Georgakis then frisked and searched § 87(2)(b) at the back of the vehicle (**Allegation J: Abuse of Authority- Frisk, substantiated**) (**Allegation K: Abuse of Authority: Search of person, substantiated**). PO Estevez issued § 87(2)(b) a summons for an obstructed license plate cover (**Allegation L: Abuse of Authority- Unlawful Summons, substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained TARU footage as well as BWC from PO Estevez, PO Georgakis, Det. Vukosa, Sgt. Seder, Lieutenant Boyle, and Captain Thomas Kaminski. Relevant portions will be discussed below (BR 1 – 9).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brian Estevez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (L) Abuse of Authority: Police Officer Brian Estevez issued an unlawful summons to § 87(2)(b)

§ 87(2)(b) (BR 10) stated that on February 15, 2024, at approximately 1:40 am, he waited, with the vehicle on and in park, in a parking spot across the street from the Sutphin Boulevard LIRR train station to pick up his father, § 87(2)(b) from work. He was in his father's vehicle. The vehicle had a regular license plate cover that holds the plate in place and does not cover any of the lettering. Thirty seconds after he parked, a grey Subaru pulled up behind him, flashing police lights. PO Estevez and Det. Vukosa then approached his driver's side door. At the conclusion of this stop, PO Estevez issued § 87(2)(b) a summons for a covered license plate.

PO Estevez (BR 11) stated that as he was driving his police vehicle near the train station, he saw § 87(2)(b) vehicle in front of him with an obstructed plate bracket. It had a metal part on it that was not supposed to be there. It did not cover any lettering on the plate, but it was generally on the plate. New York drivers are not supposed to have any sort of covering on the license plate. He then activated lights and sirens to stop § 87(2)(b) vehicle, before approaching § 87(2)(b) driver's side window.

PO Georgakis (BR 12) stated that he was in the passenger seat and noticed this thin rectangular frame along the outside of the license plate on § 87(2)(b) vehicle. PO Estevez drew his attention to the frame. PO Georgakis also believed there might have been a clear plastic covering over the plate itself.

Det. Vukosa (BR 13) stated he was in the rear driver's side seat of the vehicle occupied by PO Estevez and PO Georgakis and did not know the reason why they pulled over § 87(2)(b) at the

time. He later found out that it had something to do with § 87(2)(b) license plate and could not recall if it was due to a frame around the plate or a plastic cover.

PO Estevez's BWC (BR 14) shows PO Estevez and Det. Vukosa approaching § 87(2)(b) vehicle at 1:00. At 5:30, PO Estevez asks Sgt. Seder if they have a B-Summons. At 5:40, he tells him it is for a plate cover.

At 11:45 of PO Georgakis's BWC (BR 15), PO Estevez approaches § 87(2)(b) window and hands him a summons. At 12:03, he tells § 87(2)(b) that he needs to take off the plate cover frame. PO Estevez asks him to come to the back of the vehicle to show him what he means. At 12:11, PO Estevez grabs the bottom of the frame around the license plate and says, "this right here." The thin metal frame does not obstruct any of the lettering on the license plate, and there does not appear to be any plate cover.

On the summons issued to § 87(2)(b) PO Estevez writes that the charge is a "dirty plate or plate covered by glass or plastic" in violation of New York CLS Vehicle Traffic Law 402 §1 B)1, which states that number plates shall be kept clean and in a condition so as to be easily readable and shall not be covered by glass or any plastic material (BR 1) (BR 16).

Officer statements and BWC indicate that PO Estevez made the decision to stop § 87(2)(b) vehicle and issue him a summons for the suspected plate cover violation, the only infraction that PO Estevez mentioned as a reason for stopping § 87(2)(b) vehicle. § 87(2)(g)

Based on PO Georgakis's BWC, the number plate was in a relatively clean condition and fully readable. § 87(2)(g)

It is therefore recommended that Allegations A and L be substantiated.

Allegation (B) Abuse of Authority: Police Officer Brian Estevez questioned § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Brian Estevez searched § 87(2)(b)

Allegation (D) Force: Police Officer Brian Estevez used physical force against § 87(2)(b)

Allegation (E) Force: Detective Damir Vukosa used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Evangellos Georgakis used physical force against § 87(2)(b)

§ 87(2)(b) (BR 10) stated that he asked PO Estevez why he was pulled over and PO Estevez neglected to explain it to him. § 87(2)(b) told him that he was there to pick up his father from the station. PO Estevez told § 87(2)(b) to step out of the vehicle about four times without explaining why he stopped him. PO Estevez then opened his door and § 87(2)(b) stepped out of the vehicle on his own volition. PO Estevez then asked § 87(2)(b) for either the key to the vehicle or his ID. § 87(2)(b) reached into his front jacket pocket with his right hand to get whichever item it was that was requested of him. He did not tell them he was reaching into his pocket because he felt like he did not have to, seeing that PO Estevez just asked him to retrieve something for him. Once he reached into his pocket, PO Estevez then grabbed § 87(2)(b) by his jacket, pinning him against the frame of his driver's side door. Det. Vukosa grabbed his left arm as well. Both officers told § 87(2)(b) not to reach for anything. In response, § 87(2)(b) yelled at the officers and then told them to search him because he had nothing incriminating on him. PO Estevez then reached into his outer pocket, took out a couple of items § 87(2)(b) could not recall what they were), and then put them back.

BWC captures this incident. At 1:00 of PO Estevez's BWC, he approaches § 87(2)(b) vehicle. At 1:13, § 87(2)(b) asks the officers why they came up on him like that, and PO Estevez says "that's how we roll." § 87(2)(b) is calm and still in his vehicle, holding chips in his right hand.

1:30 of PO Estevez's BWC (BR 14), PO Estevez asks § 87(2)(b) where he is from. § 87(2)(b) hands his ID to Det. Vukosa without officers asking for his identification. At 1:40, PO Estevez tells § 87(2)(b) that he is not in trouble, but tells him to step out so he can talk to him in the back. § 87(2)(b) asks why, and PO Estevez repeats his request. At 1:57, § 87(2)(b) says he comes here every night to pick up his father. At 2:05, § 87(2)(b) asks why he cannot stay in the vehicle and PO Estevez says, "it's not what you want, it's for my safety and your safety, I just want you out." At 2:20, § 87(2)(b) asks for the reason why he is being stopped. PO Estevez opens his door. § 87(2)(b) asks if he can leave his vehicle on, and PO Estevez says yes. § 87(2)(b) grabs a soda can and a snack and PO Estevez tells him to leave that in the vehicle. § 87(2)(b) raises his voice in frustration that he still has not been told why he was pulled over. At 2:55, as § 87(2)(b) stands up, PO Estevez says, "you got nothing on you you're not supposed to have on you, right boss man?" § 87(2)(b) says, "I don't got nothing on me, bro, y'all can search me if y'all want to, bro. I'm not appreciating this right now." PO Estevez says, "I appreciate it" and reaches for § 87(2)(b) jacket pocket as § 87(2)(b) puts his hand into his right pocket. § 87(2)(b) recoils and says, "why are you search-bro, why are you touching me? Why are you searching me bro?" PO Georgakis grabs § 87(2)(b) left arm and raises it upwards as Det. Vukosa grabs § 87(2)(b) right arm. PO Estevez says, "Brother man, you just said." PO Estevez puts his left hand in § 87(2)(b) right outer jacket pocket. § 87(2)(b) looks at Det. Vukosa and says, "you don't have to grab me up." PO Georgakis tells him to relax. At 3:17, § 87(2)(b) yells, "I will let y'all search me, you don't have to grab me up like that. Y'all do not have to grab me up like that. I do not appreciate that." PO Georgakis tells § 87(2)(b) to come talk to him at the back of the vehicle and § 87(2)(b) walks back with him.

PO Georgakis's BWC (BR 15) captures this incident from another angle. At 2:55, PO Estevez asks § 87(2)(b) if he has anything on him that he is not supposed to have, as he lightly places his hand on § 87(2)(b) jacket, grabbing the lower left side. PO Georgakis grabs § 87(2)(b) left arm with his right hand and the lower left side of his jacket with his left hand. § 87(2)(b) twists his right hand away from Det. Vukosa as Det. Vukosa continues to hold onto it.

PO Estevez (BR 11) stated that as he approached § 87(2)(b) vehicle, he saw § 87(2)(b) looking back nervously multiple times while reaching and rocking his body back and forth in front of him as if he was trying to conceal a weapon. The movement lasted for a few seconds. PO Estevez could not see his hands. He thought this was an unusual movement as people usually pull over their vehicle right away; § 87(2)(b) then moved his vehicle further to the side of the street shortly thereafter. When PO Estevez approached § 87(2)(b) he asked him to step out of the vehicle because of the movements he saw him making, and because he customarily does this during vehicle stops. He also usually does not tell an individual why he pulled them over at first because drivers either run away from officers or act hostile when officers tell drivers what they did wrong. § 87(2)(b) seemed nervous during their conversation because his hands were shaking.

When § 87(2)(b) stepped out of the vehicle, PO Estevez asked him if he had anything on him that he was not supposed to have. There were no bulges coming out of § 87(2)(b) pockets that drew his attention; he only asked this question due to the few seconds of suspicious movements that § 87(2)(b) had made as he approached his vehicle. § 87(2)(b) responded by saying, "you can search me," so PO Estevez did so. Before searching him, PO Estevez grabbed onto § 87(2)(b) jacket to gain control of § 87(2)(b) because it seemed to him that § 87(2)(b) was slowly walking away from his vehicle and yelling at the officers. He did not frisk him at all prior to § 87(2)(b) saying he could search him. PO Estevez acknowledged that § 87(2)(b) was upset by the amount of officers present during this stop, and did not think that anything § 87(2)(b) said subsequently constituted a revocation of the consent to search him.

Det. Vukosa (BR 13) stated that he saw § 87(2)(b) move inside of his vehicle as he approached § 87(2)(b) window, although he could not recall any specifics of these movements. When PO Estevez initiated a frisk of § 87(2)(b) tried to reach down towards his waist area, so Det. Vukosa took control of § 87(2)(b) right hand by lifting it up and released control of his hand after PO Estevez concluded his search of § 87(2)(b).

PO Georgakis (BR 12) stated that from inside his vehicle, he saw § 87(2)(b) reach down momentarily in front of his body for a couple of seconds, after pulling his vehicle over to the side of the road. PO Georgakis could not see his hands at the time. He then went to the passenger side of the vehicle and from what he could tell, § 87(2)(b) was being noncompliant because he heard PO Estevez ask him to step out of the vehicle and saw that he did not step out. PO Georgakis came over to the driver's side of the vehicle to assist. When § 87(2)(b) stepped out of his vehicle, he was acting agitated and speaking very quickly. To make sure § 87(2)(b) did not push past the officers or evade them, PO Georgakis held onto the left side of his jacket, as well as his arm, to make sure he did not swing at officers or run, and for his own safety.

PO Estevez prepared a consent to search form regarding this incident, which lists him as the officer who asked for consent, and that § 87(2)(b) granted him consent to search his person (BR 17).

People v. McCreedy 504 N.Y.S.2d 125 states that a quick hand motion by an occupant of a vehicle, absent other circumstances suggesting criminal activity, is not suspicious in itself (BR 18).

Patrol Guide Procedure 212-11 states that officers may ask accusatory questions as part of a common law right of inquiry based on founded suspicion that criminal activity is afoot. Founded suspicion is defined as some present indication of criminality based on observable conduct or reliable hearsay information. It also states that an officer may forcibly remove an individuals' hands from their pockets, if the circumstances suggest the person may be grabbing a weapon (BR 19).

People v. Garcia 20 N.Y. 3d 317 states that a police officer may not, without founded suspicion for the inquiry, ask the occupants of a stopped vehicle if they possess any weapons (BR 20).

New York City Administrative Code 14-173 states that for a search that is based solely on a person's consent to such search, members of service should articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and that such search will not be conducted if such person refused to provide consent to such search. The member of service should also secure such consent without threats or promises of any kind being made to such person, affirming that such person understands the information communicated above, and refrain from conducting such search where such consent has not been obtained (BR 21).

People v. Gonzalez 39 N.Y.2d 122 states that consent to search must be a free and unconstrained choice. Official coercion, even if deviously subtle, nullifies apparent consent. The number of agents present is one factor in determining whether an individual was coerced into providing consent (BR 22).

Patrol Guide Procedure 221-01 states that force may be used when it is reasonable to ensure the safety of a member of service, or to prevent escape from custody. Any application or use of force must be reasonable under the circumstances. Members of service will use only the reasonable force necessary to gain control or custody of a subject (BR 23).

PO Estevez stated that he asked § 87(2)(b) if he had anything on him that he was not supposed to have, due to alleged movements inside of the vehicle that were not captured on BWC.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be substantiated.

As shown in BWC, § 87(2)(b) responded to PO Estevez's question by saying he had nothing on him, that he could search him if he wanted to, and that he was unappreciative of the situation. § 87(2)(g)

In response to PO Estevez then searching his pockets, he recoiled in confusion and asked the officer why he was doing that, § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be substantiated.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **within NYPD guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **within NYPD guidelines**.

Allegation (G) Abuse of Authority: Detective Damir Vukosa searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (H) Abuse of Authority: Sergeant James Seder searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (I) Abuse of Authority: Lieutenant Michael Boyle searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (BR 10) stated that after PO Estevez searched him, PO Georgakis walked with § 87(2)(b) to the back of his vehicle. While he was at the back, he turned around and looked at his front driver's side door, where he saw an officer, identified as Det. Vukosa, fully inside of his vehicle, looking around the driver's seat and reaching back to check the back left seat as well. No officer asked him for consent to search his vehicle, nor did he provide consent to search his vehicle.

Det. Vukosa's BWC (BR 24) captures this incident. At 3:23, § 87(2)(b) walks towards the back of his vehicle with PO Georgakis. He says, "you're bugging, bro, c'mon." Det. Vukosa shines his flashlight into § 87(2)(b) vehicle as § 87(2)(b) says, "Niggas letting y'all search me, niggas letting y'all search the car, y'all do not have to grab me up like that." At 3:36, Det. Vukosa leans into the vehicle and climbs inside. He opens the center console and looks through it. At 5:20, Det. Vukosa exits the vehicle.

At 2:20 of Sgt. Seder's BWC (BR 25), Sgt. Seder opens § 87(2)(b) rear passenger side door and sticks his head into the vehicle, looking around the seats. Lieutenant Boyle and Det. Vukosa are already searching the vehicle.

At 1:30 of Lieutenant Boyle's BWC (BR 26), Lieutenant Boyle stands near the driver's side door as PO Georgakis walks with § 87(2)(b) towards the rear of the vehicle. Det. Vukosa stands near the door. At 1:34, Lieutenant Boyle says, "he said we could toss it, right?" He walks around to the passenger side door. At 1:58, he opens the glove compartment and looks through it. At 2:50, Sgt. Seder searches the front passenger seat.

Det. Vukosa (BR 13) stated that as § 87(2)(b) walked towards the rear of his vehicle, he said, in sum and substance, "I'll let you search me, I'll let you search the car, but why did you grab my hands?" This led him to immediately begin searching the vehicle. Apart from § 87(2)(b) comment, nothing else informed Det. Vukosa's decision to search the vehicle; nothing made him believe there was a weapon in the vehicle. Det. Vukosa believed that § 87(2)(b) consent was fully voluntary. No officers told § 87(2)(b) he did not have to consent to this search, because § 87(2)(b) voluntarily offered it. This procedure of informing individuals they do not have to consent is not something that Det. Vuosa thinks of off the top of his head all the time.

Sgt. Seder's statement (BR 27) was consistent with Det. Vukosa's, noting that he only searched because he heard § 87(2)(b) offer voluntary consent, in which case no further questions

from the officers were necessary.

Lieutenant Boyle (BR 28) stated he heard § 87(2)(b) say something along the lines of “you can search me” and “I don’t have anything in the car” as he approached the vehicle. As other officers escorted § 87(2)(b) to the back of the vehicle, he asked another officer, the identity of whom he could not recall, if § 87(2)(b) said he could search the vehicle, and he remembered this officer affirming in some way that this was the case. This was the only reason why he proceeded to search the vehicle.

New York City Administrative Code 14-173 (BR 21) states that for a search that is based solely on a person’s consent to such search, members of service should articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and that such search will not be conducted if such person refused to provide consent to such search. The member of service should also secure such consent without threats or promises of any kind being made to such person, affirming that such person understands the information communicated above, and refrain from conducting such search where such consent has not been obtained.

People v. Gonzalez 39 N.Y.2d 122 (BR 22) states that consent to search must be a free and unconstrained choice. Official coercion, even if deviously subtle, nullifies apparent consent. The number of agents present is one factor in determining whether an individual was coerced into providing consent.

§ 87(2)(b) stated, indirectly, that he was letting officers search his vehicle, after he had gotten upset at PO Estevez’s searching of his person by his door, along with PO Georgakis and Det. Vukosa grabbing his arms. § 87(2)(g)

§ 87(2)(b) No officer assured him of his right to refuse a vehicle search. § 87(2)(g)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

It is therefore recommended that **Allegations G, H, and I** be **substantiated**.

Allegation (J) Abuse of Authority: Police Officer Evangellos Georgakis frisked § 87(2)(b)

Allegation (K) Abuse of Authority: Police Officer Evangellos Georgakis searched § 87(2)(b)

These allegations derive from BWC.

At 3:06 of PO Georgakis’s BWC (BR 15), PO Georgakis holds the lower left side of § 87(2)(b) jacket with his left hand and § 87(2)(b) left arm with his right hand. At 3:30, PO Georgakis guides § 87(2)(b) to the back of his vehicle. At 3:50, PO Georgakis taps § 87(2)(b) jacket pocket and says, “Do me a favor, what do you have in this pocket?” § 87(2)(b) reaches his left hand towards the pocket and PO Georgakis tells him not to reach into it. At 3:53, § 87(2)(b) removes his hand and says, “you can check. It’s a cube.” PO Georgakis pulls out a Rubix cube and puts it back in § 87(2)(b) pocket. At 4:08, PO Georgakis frisks the inside of § 87(2)(b) jacket and says, “the inside pocket too?” At 4:10, § 87(2)(b) says there’s nothing inside of it and that PO Georgakis can check it if he wants to. PO Georgakis puts his hand in and pulls it out. He checks § 87(2)(b) left outer pocket again.

§ 87(2)(b) did not mention this incident (BR 10).

PO Georgakis (BR 12) stated that as he held onto the left side of § 87(2)(b) jacket for his safety, he felt something that could have possible been a weapon inside of his outer left jacket

pocket, as well as what might have been the thin handle of a knife in an inner jacket pocket. Feeling all of this was an accident and he did not intend to frisk § 87(2)(b) by his vehicle, but the contact was incidental. Before grabbing onto the pocket, PO Georgakis did not suspect § 87(2)(b) of any criminality. He felt multiple objects when putting his hand on the outer pocket. When he looked at the outer pocket, he saw a cube-shaped bulge, approximately four by four inches. Because he felt various objects inside of it, and did not know what they were, he wanted to make sure there were no weapons inside of it.

At the back of the vehicle, he patted down this area when he tapped on it and asked § 87(2)(b) what was inside of it. § 87(2)(b) gave him consent to reach inside of the pocket, but because PO Georgakis suspected there might be a weapon inside of the pocket, he did not necessarily need § 87(2)(b) consent. PO Georgakis pulled out a toy from this pocket, and then frisked the area he earlier believed he might have felt the handle of a knife: the inner jacket pocket. § 87(2)(b) gave PO Georgakis consent to search this area. PO Georgakis could not recall what was in this inner pocket.

People v. Robinson 125 A.D. 2d 259 finds that instances where a visual observation or a limited protective frisk of the detainee reveals a bulge, that bulge must look or feel like a weapon before the officer is entitled to subject the detainee to a further and more intrusive search. Once the police officer knows that the bulge is not a weapon, he has no right to continue the search (**BR 29**).

In People v. Jones 164 A.D. 1363, the court concluded that a bulging jacket pocket is hardly indicative of criminality as a pocket bulge, unlike a waistband bulge, could be caused by any number of innocuous objects, and an individual has a right to be let alone (**BR 30**).

Patrol Guide Procedure 212-11 states that where a frisk reveals an object that the member of service reasonably suspects may be a weapon, the member of service may search only those interior portions of the person's clothing to remove the weapon (**BR 19**).

New York City Administrative Code 14-173 states that for a search that is based solely on a person's consent to such search, members of service should articulate, using plain and simple language delivered in a non-threatening manner, that the person who is the subject of the search is being asked to voluntarily, knowingly, and intelligently consent to such search, and that such search will not be conducted if such person refused to provide consent to such search. The member of service should also secure such consent without threats or promises of any kind being made to such person, affirming that such person understands the information communicated above, and refrain from conducting such search where such consent has not been obtained (**BR 20**).

PO Georgakis frisked § 87(2)(b) outer jacket pocket after feeling and seeing a cube-shaped bulge, and possibly other objects inside of the pocket. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations J and K** be substantiated.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 32).
- § 87(2)(b)
- PO Estevez has been a member of service for six years and has been a subject in four CCRB complaints and 13 allegations, two of which were substantiated.
 - 202101806 involved substantiated allegations of seizure of property and a failure to provide an RTKA card. The board recommended Command Discipline A and the NYPD upheld its recommendation.
- Sgt. Seder has been a member of service for 16 years and has been a subject in 10 CCRB complaints and 19 allegations, two of which were substantiated.
 - 201603830 involved a substantiated allegation of a question. The NYPD imposed instructions.
 - § 87(2)(g)
- Det. Vukosa has been a member of service for three years and has been a subject in 23 CCRB complaints and 110 allegations, 23 of which were substantiated.
 - § 87(2)(g)
 - 202307068 involved substantiated allegations of a failure to provide an RTKA card and vehicle search. The board recommended Command Discipline B and the NYPD imposed no penalty.
 - § 87(2)(g)
- Lieutenant Boyle has been a member of service for 16 years and has been a subject in five CCRB complaints and 11 allegations, one of which was substantiated.
 - 202002984 involved a substantiated allegation of a discourteous word. The board recommended Command Discipline A and the NYPD imposed no penalty.
- PO Georgakis has been a member of service for four years and has been a subject in one CCRB complaint and one allegation, which was not substantiated.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- § 87(2)(b) | §§ 86(1)(3)&(4) | § 87(2)(c)

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator:	<u>Will Jacobson</u>	<u>Inv. Jacobson</u>	<u>09/06/2024</u>
	Signature	Print Title & Name	Date

Vanessa
Rosen

Manager Vanessa Rosen

September 9, 2024

Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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